

MAIL

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOSE GONZALEZ,
Plaintiff,

-against-

THE CITY OF NEW YORK, DAMON FORD,
JEANBERN R. REMY, JOHN DOE NOS. 1-10,
whose identities are unknown,
except to the extent that they are employees
of the CITY OF NEW YORK,
and/or members or personnel of the Police
Department of the CITY OF NEW YORK,

Defendants.
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SUMMONS

Index No.:
Date Filed:

Plaintiff designates BRONX
County as the place of trial.

The basis of venue is CPLR
504.

CLERK OF
COUNTY
JUN 11 2008

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 13, 2008

ROBERT WEISS, ESQ.
Attorneys for Plaintiff(s)
JOSE GONZALEZ
11 Broadway--Suite 1055
New York, NY 10004
(212) 233-0800

TO: CITY OF NEW YORK, 100 Church Street, New York, New York 10007

DAMON FORD,

JEANBERN R. REMY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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COMPLAINT

PLAINTIFF JOSE GONZALEZ ("Plaintiff"), by his attorney, Robert Weiss, Esq.,

complaining of the defendants herein, respectfully shows to this Court, and alleges as follows:

THE PARTIES

1. At all times hereinafter mentioned, Plaintiff was and still is a resident of the City and State of New York.
2. At all times relevant and material herein, the defendant CITY OF NEW YORK was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the Laws of the State of New York.
3. At all times relevant and material herein, the defendant DAMON FORD was an employee of the Police Department of the City of New York.
4. At all times relevant and material herein, the defendant JEANBERN R. REMY was an employee of the Police Department of the City of New York.

5. At all times relevant and material herein, the defendants John Does Nos. 1-10, were personnel of the Police Department of the City of New York.

6. At all times relevant and material herein, the defendant CITY OF NEW YORK operated, maintained, managed, supervised and controlled a police department as part of and in conjunction with its municipal functions.

7. At all times relevant and material herein, the defendants DAMON FORD and JEANBERN R. REMY were personnel of the Police Department of the City of New York.

8. At all times relevant and material herein, the defendants John Does Nos. 1-10, were personnel of the Police Department of the City of New York.

9. That at all times hereinafter mentioned and upon information and belief, the defendant CITY OF NEW YORK, employed and supervised the defendants DAMON FORD and JEANBERN R. REMY.

10. That at all times hereinafter mentioned and upon information and belief, the defendant CITY OF NEW YORK, employed and supervised the defendants John Does Nos. 1-10.

11. Upon information and belief, the defendants DAMON FORD and JEANBERN R. REMY were graduates of the Police Academy of the City of New York.

12. Upon information and belief, the defendants John Does Nos. 1-10 were graduates of the Police Academy of the City of New York.

13. At all times relevant hereto, the defendant City of New York had the duty to competently and sufficiently train, within the Police Academy and at the Command, Precinct and Patrol levels, the defendant officers DAMON FORD, JEANBERN R. REMY, and John Doe Nos. 1-10, to conform their conduct to a standard for the protection of individuals, such as Plaintiff,

against the unreasonable risk of harm by conducting themselves in such a manner so as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as Plaintiff herein.

14. In addition, at all times relevant hereto, the defendant City of New York had the duty to competently and sufficiently train within the Police Academy and at the Command, Precinct and Patrol levels the defendant officers DAMON FORD, JEANBERN R. REMY and John Doe Nos. 1-10 in the protections of the rights of Plaintiff under the Constitution and the Bill of Rights.

15. At all times hereinafter mentioned, upon information and belief, the defendants DAMON FORD, JEANBERN R. REMY and John Does Nos. 1-10 where acting in their capacities as employees, agents or servants of the defendant CITY OF NEW YORK.

16. At all times hereinafter mentioned, the defendants DAMON FORD, JEANBERN R. REMY and John Does Nos. 1-10 where acting under color of law.

17. At all times hereinafter mentioned, the defendants' acts constituted state action.

18. On or about April 21, 2007, Plaintiff was on present in the vicinity of Gilbert and Hunts Point Avenues, in the City and State of New York, County of Bronx.

19. Additionally, on or about April 21, 2007, the defendants DAMON FORD, JEANBERN R. REMY and John Does Nos. 1-10, were on duty and/or acting as employees, agents or servants of the defendant CITY OF NEW YORK, and were also present at the same time and in the same place as Plaintiff, as aforesaid.

20. At approximately 3:00 pm, on or about April 21, 2007, the defendants DAMON FORD, JEANBERN R. REMY and/or John Doe Nos. 1-10, individually, jointly and severally detained and arrested plaintiff.

21. At approximately 3:00 pm, on or about April 21, 2007, the defendants then individually, jointly and severally assaulted Plaintiff.

22. At approximately 3:00 pm, on or about April 21, 2007, the defendants then physically battered Plaintiff.

23. In addition to the defendants' willful and intentional attack upon Plaintiff, the defendants intentionally held and restrained Plaintiff without his consent.

24. Plaintiff was then arrested and/or caused to be arrested and charged with various crimes.

25. The charges were subsequently dismissed or otherwise disposed of.

26. All of the defendants' acts described in the preceding paragraphs were without probable or just cause, grounds or provocation, and were excessive, unreasonable, unnecessary and without any privilege or justification.

27. By reason of the foregoing acts by the defendants, Plaintiff sustained personal injuries and suffered, and upon information and belief, will continue to suffer, continuous pain and anguish.

28. By reason of the foregoing acts by the defendants, Plaintiff was caused severe and intense emotional anguish, distress and embarrassment, and upon information and belief, will continue to suffer same.

29. By reason of the foregoing, Plaintiff was compelled to, and did necessarily, require medical attention and did necessarily pay and/or become liable therefore, and upon information and belief, Plaintiff will necessarily incur similar expenses and/or liabilities.

30. By reason of the foregoing, Plaintiff was compelled to, and did necessarily, incur legal fees and did necessarily pay and become liable therefore, and upon information and belief, Plaintiff will necessarily incur similar legal fees.

31. Before the commencement of this action, on or about July 19, 2007, or within the time mandated by law, a Notice of Claim containing the information required by law was duly served upon the defendant CITY OF NEW YORK.

32. On or about April 22, 2008, pursuant to General Municipal Law §50-h, Plaintiff appeared and duly submitted to oral examination.

33. That all conditions precedent to the maintenance of this action have been met.

34. More than thirty (30) days have elapsed since the claims upon which this action is based were presented to the defendant CITY OF NEW YORK, and said defendant has neglected and/or refused to make payment or adjustment thereof.

35. This action is commenced within one year and ninety days after both the accrual of the causes of action alleged in this complaint and the happening of the incidents and acts complained of herein.

FIRST CLAIM FOR RELIEF
(PURSUANT 42 U.S.C. §1983
FOR DEFENDANTS' VIOLATION
OF PLAINTIFF'S CIVIL RIGHTS)

36. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

37. The defendants' acts towards Plaintiff as previously set forth herein were without warrant, authority of law, or any reasonable cause or belief that Plaintiff committed any crime.

38. Such acts constituted a deprivation of Plaintiff's Constitutional rights, liberties and freedoms under color of State law, under 42 U.S.C. §1983.

39. Said violation of Plaintiff's Constitutional rights caused him personal injury and damage, both physical and mental; and severe emotional distress and illness.

40. By reason of Defendants' violation of Plaintiff's Constitutional rights, Plaintiff is entitled to judgment in the amount of \$1,000,000.00.

SECOND CLAIM FOR RELIEF
(PURSUANT TO 42 U.S.C §1983
FOR ASSAULT AND/OR BATTERY
UNDER COLOR OF STATE LAW)

41. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

42. The defendants' assault and battery of Plaintiff was excessive, unwarranted, unnecessary and violent and violated Plaintiff's rights under the Constitution.

43. The said assault and battery caused Plaintiff personal injury and damage, both physical and mental; and severe emotional distress and illness.

44. As a result thereof, Plaintiff is entitled to judgment in the amount of \$1,000,000.00.

THIRD CLAIM FOR RELIEF
(PURSUANT TO 42 U.S.C §1983
FOR FALSE ARREST AND IMPRISONMENT
UNDER COLOR OF STATE LAW)

45. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

46. The defendants arrested, detained and imprisoned Plaintiff, without warrant, even though they knew or should have known that he was wholly innocent of any crime then and there alleged against him, and thus violated Plaintiff's Constitutional rights.

47. As a result thereof, Plaintiff is entitled to judgment in the amount of \$1,000,000.00.

FOURTH CLAIM FOR RELIEF
(EXCESSIVE AND UNREASONABLE FORCE)

48. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

49. In their arrest, detention and imprisonment of Plaintiff, defendants used physical force that was excessive, unreasonable and disproportionate and not reasonably necessary under the circumstances.

50. As a result thereof, Plaintiff is entitled to judgment in the amount of \$1,000,000.00.

FIFTH CLAIM FOR RELIEF
(COMMON LAW ASSAULT)

51. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

52. The defendants are liable for assault to Plaintiff.

53. As a result thereof, Plaintiff is entitled to judgment in the amount of \$1,000,000.00.

SIXTH CLAIM FOR RELIEF
(COMMON LAW BATTERY)

54. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

55. The defendants are liable for battery to Plaintiff.

56. As a result thereof, Plaintiff is entitled to judgment an amount exceeding the jurisdiction of all lower courts.

SEVENTH CLAIM FOR RELIEF
(COMMON LAW FALSE ARREST
AND IMPRISONMENT)

57. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

58. The defendants are liable for false arrest and false imprisonment to Plaintiff.

59. As a result thereof, Plaintiff is entitled to judgment in the amount of \$1,000,000.00.

EIGHTH CLAIM FOR RELIEF
(COMMON LAW INTENTIONAL
INFLICTION OF EMOTIONAL DISTRESS)

60. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

61. The defendants' conduct, in assaulting, battering and falsely arresting and imprisoning Plaintiff was outrageous, shocking and exceeded all reasonable bounds of decency.

62. The defendants are liable for intentional infliction of emotional distress to Plaintiff.

63. As a result thereof, Plaintiff is entitled to judgment in the amount of \$1,000,000.00.

NINTH CLAIM FOR RELIEF
(NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS)

64. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

65. The defendants' conduct, in assaulting, battering and falsely arresting and imprisoning Plaintiff was careless and negligent as to the emotional health of Plaintiff.

66. The defendants are liable for negligent infliction of emotional distress to Plaintiff.

67. As a result thereof, Plaintiff is entitled to judgment in the amount of \$1,000,000.00.

TENTH CLAIM FOR RELIEF
(COMMON LAW NEGLIGENCE)

68. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth.

69. The defendant CITY OF NEW YORK, was negligent in its operation, management, supervision and control of its police department; in its training; in its conduct, at the aforesaid location; in its employees in assaulting, battering and falsely arresting and imprisoning Plaintiff.

70. Additionally, the defendants John Doe Nos. 1-10 were negligent in their conduct, in causing, or allowing, the occurrence as aforesaid.

71. As a result thereof, Plaintiff is entitled to judgment in the amount of \$1,000,000.00.

WHEREFORE, Plaintiff demands judgment against the defendants as follows:

On each CLAIM FOR RELIEF, judgment in an amount to be determined at the trial of this action, which amount exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction this action; and

Plaintiff demands an additional sum of punitive damages against each defendant to be determined at the trial of this action; and

In the event plaintiff is a prevailing party, attorneys fees; and

Interest, costs, and such other relief as to this Court shall seem just and proper.

DATED: New York, New York
May 13, 2008

Yours, etc.,



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Attorney for Plaintiff
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